

Commission Review
Rules for G.S. 150B-19.1 Certification
May 16, 2013 through June 19, 2013

* Certification Recommended. ** Certification Not Recommended. *** Other

HOME INSPECTOR LICENSURE BOARD

The rules in Chapter 8 are the engineering and building codes including the approval of school maintenance electricians (.0400); qualification board-limited certificate (.0500); qualification board-probationary certificate (.0600); qualification board-standard certificate (.0700); disciplinary actions and other contested matters (.0800); manufactured housing board (.0900); NC Home Inspector Licensure Board (.1000); home inspector standards of practice and code of ethics (.1100); disciplinary actions (.1200); home inspector continuing education (.1300); Manufactured Housing Board continuing education (.1400); and alternate designs and construction appeals (.1500).

<u>Complaints</u>	11 NCAC 08 .1202
<u>Amend/*</u>	
<u>Board Staff</u>	11 NCAC 08 .1203
<u>Repeal/*</u>	
<u>Investigation</u>	11 NCAC 08 .1204
<u>Amend/*</u>	
<u>Disciplinary Hearing</u>	11 NCAC 08 .1205
<u>Amend/*</u>	

PRIVATE PROTECTIVE SERVICES BOARD

The rules in Subchapter 7D cover organization and general provisions (.0100); licenses and trainee permits (.0200); security guard patrol and guard dog service (.0300); private investigator and counterintelligence (.0400); polygraph (.0500); psychological stress evaluator (PSE) (.0600); unarmed security guard registration (.0700); armed security guard firearm registration permit (.0800); trainer certificate (.0900); recovery fund (.1000); training and supervision for private investigator associates (.1100); continuing education (.1300); unarmed armored car service guard registration requirements (.1400); and armed armored car service guard registration permit requirements (.1500).

<u>Experience Requirements for a Polygraph License</u>	12 NCAC 07D .0501
<u>Amend/*</u>	
<u>Polygraph Trainee Permit Requirements</u>	12 NCAC 07D .0502
<u>Amend/*</u>	
<u>Polygraph Examination Requirements</u>	12 NCAC 07D .0503
<u>Amend/*</u>	
<u>Polygraph Instruments</u>	12 NCAC 07D .0504
<u>Amend/*</u>	

CRIMINAL JUSTICE EDUCATION AND TRAINING STANDARDS COMMISSION

The rules in Chapter 9 are from the Criminal Justice Education and Training Standards Commission. This Commission has primary responsibility for setting statewide education, training, employment, and retention standards for criminal justice personnel (not including sheriffs).

The rules in Subchapter 9B cover minimum standards for: employment (.0100); schools and training programs (.0200); criminal justice instructors (.0300); completion of training (.0400); school directors (.0500); and certification of post-secondary criminal justice education programs (.0600).

<u>Basic Law Enforcement Training</u>	<u>12 NCAC 09B .0205</u>
<u>Amend/*</u>	
<u>Juvenile Justice Specialized Instructor Training - Restr...</u>	<u>12 NCAC 09B .0241</u>
<u>Amend/*</u>	

The rules in Subchapter 9E relate to the law enforcement officers' in-service training program.

<u>Instructors: Annual In-Service Training</u>	<u>12 NCAC 09E .0104</u>
<u>Amend/*</u>	

The rules in Subchapter 9F cover concealed handgun training.

<u>Filing and Fees</u>	<u>12 NCAC 09F .0107</u>
<u>Amend/</u>	

The rules in Subchapter 9G are the standards for correction including scope, applicability and definitions (.0100); minimum standards for certification of correctional officers, probation/parole officers, and probation/parole officers-intermediate (.0200); certification of correctional officers, probation/parole officers, probation/parole officers intermediate and instructors (.0300); minimum standards for training of correctional officers, probation/parole officers, and probation/parole officers-intermediate (.0400); enforcement of rules (.0500); professional certification program (.0600); and forms (.0700).

<u>Corrections Specialized Instructor Training - Firearms</u>	<u>12 NCAC 09G .0415</u>
<u>Amend/*</u>	
<u>Corrections Specialized Instructor Training - Controls, R...</u>	<u>12 NCAC 09G .0416</u>
<u>Amend/*</u>	

STATE BOARD OF EDUCATION

The rules in Subchapter 6G relate to education agency relations including rules about the school-based management and accountability program (.0300) and charter schools (.0500).

<u>Annual Performance Standards Under the Ready Accountabilit...</u>	<u>16 NCAC 06G .0312</u>
<u>Amend/*</u>	



CES-Guidance

CES-Model Application Forms and Supplementary Forms

Notes to Applicants

These Notes accompany the relevant CES Model Application Forms for each category of employee and:

- the Model Recruitment Monitoring Form;
- the Model Rehabilitation of Offenders Act 1974 Disclosure Form; and
- the Model Consent to Obtain References Form,

together referred to as the “supplementary forms”.

Where there is a distinction between the categories of employee to which these Notes apply, it will be clearly highlighted.

Applicants are advised to read through these Notes fully before completing the Application Form and the supplementary forms.

Applicants are advised that references to School / College in the Application Forms, the supplementary forms and these Notes to Applicants includes Academies. Further, references to Governing Body in those documents include an Academy Trust Company, a Multi Academy Trust Company and / or its Governing Body / Board of Directors / Local Governing Body as appropriate.

TECHNICAL INSTRUCTIONS

1. Depending on the recruiting school's / college's own requirements applicants may complete the Application Form and supplementary forms in three ways:
 - Completion and submission electronically;
 - Completion electronically, printing and submitting a hardcopy via post, by fax or by scanning and emailing;
 - Printing off and completing in handwritten format, then submitting by post, by fax or by scanning and emailing.
2. Where applicants complete the Application Form and supplementary forms and submit by post, written acknowledgement of receipt will only be provided where the applicant has supplied a stamped addressed envelope with their posted application.

GENERAL INFORMATION

Applicants must ensure that they are using the most up to date version of the Application Form and supplementary forms. Where there is any doubt, applicants should contact the school / college where the position applied for is based, or the contact person mentioned in the job advertisement.

Applicants are reminded that this is an application for a post in a Catholic Voluntary Aided School / Catholic Voluntary Academy / Catholic Voluntary Multi Academy Trust (if applicable) where the Governing Body / Academy Trust Company / Multi Academy Trust Company is the employer and that the post will be subject to the terms and conditions of the appropriate CES model contract of employment. A copy of the relevant contract will be provided to the applicant if they are shortlisted for interview.

Applicants should note that, in accordance with the safeguarding vulnerable groups' regime, it is their responsibility to have made any necessary registrations relevant at the time of making this application, which are required for people working or volunteering with children. Accordingly, applicants are put on notice that any offer of employment made will be conditional upon identity and right to work checks and the results of Disclosure & Barring Service and Teacher Services checks (where applicable). For those who have lived or worked outside of the UK, the offer will also be conditional on satisfactory overseas checks including, where necessary, the provision of a letter of professional standing.

Before signing the application form, applicants must ensure that every section has been completed. **Failure to complete all relevant sections may result in an application being rejected.**

All Application Forms, supplementary forms and any relevant documentary evidence should be sent to the school / college where the position applied for is based, or as instructed in the job advertisement. **Applicants should not return any Application Form and / or supplementary forms and / or any relevant documentary evidence to the CES.** Any applications received by the CES will not be forwarded or returned but shall be securely disposed of.

THE APPLICATION FORM – GUIDANCE ON COMPLETING SPECIFIC SECTIONS

Applicants are advised that the Governing Body complies with the School Standards and Framework Act 1998 and the Equality Act 2010.

Details of the Role Applied For

Applicants should complete this section of the Form by inserting the relevant information and ticking the appropriate boxes.

Personal Details

Applicants should insert the requested details and tick the relevant box in order to indicate how they would prefer to be contacted.

If an applicant has obtained qualified teacher status from a jurisdiction other than England or Wales they should insert their membership number for the relevant teaching profession regulator and provide details of the specific regulator.

Support staff and Lay Chaplain Application Forms only—if applicants have not obtained qualified teacher status they should leave this section blank.

Details of Present Employment

Applicants who are not currently employed, should tick the box that says “no” and proceed to the next section.

Employment History

Applicants should provide full and accurate details of relevant employment history and professional or work experience starting with the most recent. They should not repeat the information provided (if applicable) relating to present employment. Where the applicant is a student seeking a first-time appointment, they should provide details of all teaching practice to date (if applicable).

Other Employment / Work Experience

Applicants should provide details of all other employment and paid or unpaid experience after the age of 18 (e.g. employment unrelated to the teaching profession, voluntary work etc).

Applicants must ensure that there are no gaps in the chronology of their education and / or employment history from the age of 18 to the present day and space has been provided on the form for this information. Failure to provide a full account may lead to an application being rejected.

Applicants must declare whether they have ever been ordained and / or been a member of a religious community. Where the answer to this question is ‘yes’, the Applicant must provide full details and expect that this will be discussed in more detail if they are successfully shortlisted for interview, more particularly in relation to their Canonical status and whether the Applicant is subject to any restrictions which may affect their suitability for appointment to the post applied for.

Post 11 Education and Training

Applicants should provide details of education received in this country and / or abroad, academic vocational qualifications obtained including degrees, with class and division, and Teacher Certificates. Applicants must include postgraduate and professional qualifications. Applicants are advised that they may be required to produce evidence of qualifications attained. Please ensure that all relevant classifications and grades are included.

Catholic Certificate in Religious Studies (“CCRS”) – this was formerly known as the Catholic Teachers’ Certificate and the Certificate in Religious Education.

Teacher post Application Forms only – applicants should state which subjects they are qualified to teach including other subjects for which they may have experience to teach. Applicants should also provide details of any other specialisms and special areas of teaching interest.

Senior Leadership posts only — the CES recognises that the NPQH is no longer a mandatory requirement in England but applicants should still provide details of the NPQH where requested in the Application Form as a potentially desirable qualification. Applicants for Headteacher posts in Wales must provide details of the NPQH as this remains a mandatory requirement for first Headship appointments.

Supporting Statement

Applicants should ensure that their supporting statement is clear and concise and does not exceed 1,300 words. It is preferable, although not compulsory, that the supporting statement is typed rather than handwritten.

References

All applicants are required to provide details of at least two, and up to three, referees. A referee who is a current or former employer must have full access to the applicant's personnel records. This is in order to ensure that the information provided is accurate.

There may be situations where the referee does not have full access to an applicant's records for data protection and privacy reasons. If that is the case, the referee will need to be in a position to complete the reference to an acceptable standard with information relating to the applicant's dates of employment. All posts are subject to satisfactory references.

It is the applicant's responsibility to ensure that they have obtained their nominated referees' explicit consent to pass on their contact details. Not only is this a matter of courtesy but it ensures that the General Data Protection Regulation is being complied with. **Please also complete the Consent to Obtain References Form and return it with your application.**

Applicants must advise the school / college if they do not want them to contact any of their referees and provide reasons. For example, where applicants are currently employed, they may not wish the school / college to contact their employer until such time that they have given notice to terminate their employment.

Applicants are advised that schools / colleges designated with a religious character in England and Wales are permitted by law to require certain posts to be filled by practising Catholics. In certain specific circumstances, it is possible that a temporary post may be filled by a person who is not a practising Catholic and there is no intention to deter suitable applicants from expressing their interest.

Senior Leadership posts— Applicants are advised that the ‘Memorandum on Appointment of Staff To Catholic Schools’ provides that ‘the posts of Headteacher or Principal, Deputy Headteacher or Deputy Principal and Head or Coordinator of Religious Education are to be filled by practising Catholics’. The Memorandum may be viewed by visiting the CES’s website at: <http://www.catholiceducation.org.uk/employment-documents/bishops-memorandum/item/1000049-memorandum-on-appointment-of-teachers-to-catholic-schools>

Teacher posts— Applicants are advised that schools / colleges are entitled to give priority to Catholic applicants. A higher degree of priority may be given to practising Catholic applicants but applications from all Catholic applicants (whether practising or not) are eligible to be given priority over applicants who are not Catholic. Nevertheless, applicants who are not Catholic are welcome to apply.

Support Staff posts— Applicants are advised that schools / colleges (in England only) are entitled to give priority to Catholic applicants where it can be demonstrated that attaching this requirement to a particular post is a proportionate means of achieving a legitimate aim (commonly known as a “genuine occupational requirement”). The recruitment documentation should make clear whether this requirement applies to the post.

Definition of “practising Catholic”— Schools / colleges may provide guidance to the applicant regarding the definition of a “practising Catholic” with the application pack and / or in the event that the applicant is shortlisted for interview.

In summary, all suitably qualified Catholic applicants, regardless of the teaching post for which they are applying, are eligible to be given preference over applicants who are not Catholic. Practising Catholic applicants should nominate their Parish Priest as one of their referees. Those applicants applying for the permanent Senior Leadership posts referenced in the Memorandum must provide such details.

For other teaching posts, Catholics who do not consider themselves to be “practising” may provide a copy of their baptism certificate with their application form, instead of providing a Priest’s reference. Alternatively, they should provide details of the name and address of the Parish where they were baptised and the date of their baptism. For support staff posts, the recruitment documentation should make it clear if being a Catholic is a requirement for the post.

In the event that an applicant is appointed, any failure to disclose the existence of a relationship, whether it be by marriage, blood or as co-habitee, between the applicant or their spouse / civil partner / partner, with a member, or an employee, of the Governing Body of the school / college where the post is situated may be considered a disciplinary offence warranting summary dismissal.

Right to work in the UK

The Governing Body is under a legal duty to require all members of staff to provide documentary evidence of their entitlement to undertake the position applied for and to ensure that they have an ongoing entitlement to live and work in the UK. These checks need to be carried out for every person the Governing Body employs regardless of race, ethnicity or nationality. Therefore, on receipt of a conditional offer of employment, and before a successful applicant commences their post, they must provide supporting evidence of their right to live and work in the UK.

The Home Office guidance entitled “An employer’s guide to right to work checks” provides a list of the documents that can be provided to demonstrate an applicant’s right to live and work in the UK (see Annex A of the guidance).

The Home Office guidance is regularly updated to reflect changes in immigration law. It is important that applicants refer to the current version. Applicants should expect to provide originals of the documents listed in Annex A to the Governing Body as evidence of their right to work in the UK. Verified copies will then be taken of the original documents as required.

Language requirements for public sector workers

The ability to communicate with members of the public in accurate spoken English and /or Welsh is an essential requirement for public facing posts. The Public Sector Workers Code of Practice notes that “to serve the public it is vital that those working in public facing roles can communicate in English, or in Wales, English or Welsh”¹. The standard of language required is satisfied if it is sufficient to enable the effective performance of the person’s role². Please note that this language requirement may be in addition to mandatory English language requirements associated with an applicant’s immigration route.

Public facing roles within the public sector would include leadership teams, teachers, support staff and others employed to work in publicly funded schools.

Declaration

The Governing Body has a duty to make a report where an applicant provides false information in prescribed circumstances in accordance with the Education Act 2002.

SUPPLEMENTARY FORMS

Model Recruitment Monitoring Form

Applicants are not required to complete the Recruitment Monitoring Form, however, if they do, they will be helping the school / college to fulfil its duties under the Equality Act 2010.

¹ See

https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/573013/english_language_requirement_public_sector_workers_code_of_practice_2016.pdf

² S.77(8) Immigration Act 2016

The Recruitment Monitoring Form will be used purely for monitoring and statistical purposes and will not form part of the application or the recruitment process. The persons involved in the recruitment process will not have sight of the completed Recruitment Monitoring Form.

Where applicants wish to complete the Recruitment Monitoring Form, they should return it *with* their completed application form but in a *separate* sealed envelope clearly marked “Confidential – F.A.O: Recruitment Monitor”.

Model Rehabilitation of Offenders Act 1974 – Disclosure Form

As the position applied for gives privileged access to vulnerable groups, all applicants attending interview are required to disclose all spent convictions and cautions under the Rehabilitation of Offenders Act 1974 (Exemptions) Order 1975 unless it is a “protected” conviction / caution under the amendments made to the Rehabilitation of Offenders Act 1974 (Exemptions) Order 1975 (in 2013 and 2020) and, therefore, not subject to disclosure.

Applicants invited for interview, should bring The Disclosure Form with them to the interview in a **separate, sealed envelope** clearly marked “Confidential – Rehabilitation of Offenders Act 1974 – Disclosure Form”. Interviewees will be asked to hand the form to the interviewer at the end of the interview.

Interviewees must disclose all spent and unspent convictions on this form other than those which are “protected”. This may include driving offences but will not include youth cautions, reprimands or warnings. The rules on multiple convictions were changed in November 2020. If interviewees are unsure about whether or not a conviction requires disclosure they should review the Ministry of Justice guidance on the filtering of “protected” convictions and cautions which can be accessed on the Ministry of Justice website.

The Disclosure Form will only be seen by those persons within the school / academy / college and / or Governing Body / Academy Trust Company / Multi-Academy Trust Company who are required to see it as part of the recruitment process if you are the preferred / one of the preferred candidates for the position.

Model Consent to Obtain References Form

Applicants should ensure that they complete and return the Consent to Obtain References Form with their completed application.

If applicants have any further questions in relation to the position applied for they should contact the school / college where the position applied for is based or they should contact the individual named on the job advertisement.